

Jaydev Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 September 2015 · WRIT - C No. 49846 of 2015 · **Writ dismissed; petitioner relegated to clause 5.6 of the Supply Code.**

HEADNOTE

A consumer dissatisfied with a consumption bill raised by the distribution corporation must pursue the remedy under clause 5.6 of the U.P. Electricity Supply Code, 2005. The High Court dismissed the writ petition with liberty to that statutory course and did not examine the bill on merits.

FACTUAL SUMMARY

Jaydev Singh filed Writ-C No. 49846 of 2015 in the Allahabad High Court against the State of Uttar Pradesh and two others, including the electricity corporation, challenging a bill raised for his electricity consumption. He sought writ relief against that bill. The Division Bench of Arun Tandon and Shashi Kant JJ. heard the matter on 3 September 2015. The order records only that the petitioner was dissatisfied with the corporation's consumption bill; it does not set out the billing period, load, or any meter-defect or theft allegation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

bill-dispute-clause-5.6-remedy

HOLDING

A consumer dissatisfied with a consumption bill raised by the distribution corporation has a remedy under clause 5.6 of the Electricity Supply Code, 2005; a writ petition challenging that bill is dismissed with liberty to pursue that remedy. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

A consumer dissatisfied with a consumption bill raised by the distribution corporation must pursue the remedy under clause 5.6 of the U.P. Electricity Supply Code, 2005. The High Court dismissed the writ petition with liberty to that statutory course and did not examine the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CONSUMPTION BILL

Writ dismissed with liberty to clause 5.6; the bill was not examined on merits. ¶ 1